

prove this – it merely shows the request.

The Complaint is stamped at the top “Electronically Filed Superior Court of CA County of Contra Costa 3/13/2026 11:03 AM By: A. Adams, Deputy.” At the bottom, it is stamped “Processed by Court on 3/19/2026 11:22 AM.” This indicates the document was actually received March 13 at 11:03 a.m. The processing occurred on March 19. Consistent with the law and Court policy, had the document been received on March 12, it would have been deemed filed as of March 12, regardless of when it was processed. Code Civ. P § 1010.6(e)(3); California Rule of Court § 2.252.

The Court takes judicial notice of the envelope from the clerk’s office and it confirms that the document was *not* submitted on March 12, 2026.

Envelope

Submit Date
03/13/2026 11:03 AM PDT
Filed By
Garo Mardigian
Firm Address
730 Salem St.
Glendale, California 91203

Docket Date
03/13/2026 11:03 AM PDT
Filing Source
Calwest
Firm Phone
2133539100

Filing Attorney
DANIEL MOOSSAI
Firm Name
Cal West Attorney Services Inc.
Filer Email
efileresult@calwest.info

The Motion is therefore **denied**.

12. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

***HEARING ON MOTION IN RE: DISMISS THE 3RD AMENDED COMPLAINT**

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's Motion to Dismiss Plaintiff’s Third Amended Complaint under Code of Civil Procedure sections 583.210 and 583.250(b) is **granted**. Defendant shall prepare and serve the order and notice of entry of order.

Background

In or about early 2019, Plaintiff Margarie David and Defendant Andre Scott agreed to a partnership to purchase and improve a property at 9 La Noria Way, Orinda for resale. (Third Amended Complaint filed on November 26, 2025 (3AC ¶ 6.) Plaintiff was to take title in her name, provide the down payment of \$148,300 along with closing costs. (3AC ¶¶ 6, 7, 8.) Scott, who served as the real estate agent for the buyer and seller in the transaction, agreed to secure the purchase money loan and oversee improvements to the property. (3AC ¶ 6, 7.) The purchase price was \$1.5 million. (3AC ¶ 8.) Escrow closed on April 4, 2019, and Plaintiff subsequently advanced \$60,175 for improvements. (3AC ¶¶ 9, 10.)

The actual purchaser of the property was Eurisko LLC, a limited liability company formed by Scott. (3AC ¶ 9.) Plaintiff's signature was forged on a Declaration of Non-Ownership required by Defendant Chicago Title Company. (3AC ¶ 11(D).) The forged declaration falsely represented that Plaintiff was not the purchaser and would not take title to the property so that Scott could conceal from Plaintiff

that Eurisko, not Plaintiff, was the true owner. (3AC ¶ 11(D).) Plaintiff discovered the fraud in August 2019 after the lender foreclosed on the second position loan. (3AC ¶ 9.)

Plaintiff filed her original complaint on December 20, 2021, naming Scott and Does 1-50 as defendants. On November 26, 2025, Plaintiff filed the operative 3AC naming Chicago Title Company as Doe 1. (3AC ¶ 2.) Chicago Title was served on December 18, 2025, approximately three years and eleven months after the original complaint was filed. (See Proof of Service filed December 18, 2025.)

Plaintiff asserts eleven causes of action against Scott for breach of contract, breach of fiduciary duty, conversion, accounting, fraud, negligent misrepresentation, negligence, tortious breach of the covenant of good faith and fair dealing, and financial elder abuse under the Welfare & Institutions Code. (3AC ¶¶ 1-65.)

Plaintiff asserts a twelfth cause of action for negligence against Chicago Title, alleging it failed to confirm that Plaintiff understood she was not the purchaser, and failed to implement adequate safeguards to prevent forgery of her signature. (3AC ¶¶ 70, 72.) Plaintiff alleges that Chicago Title gave the Declaration of Non-Ownership form to Scott for Plaintiff to sign, and that Chicago Title did not implement sufficient safeguards to prevent Scott from forging Plaintiff's signature on the form. (3AC ¶ 72.) Plaintiff alleges that Chicago Title knew or should have known of fraud based on Plaintiff's age, the initial refusal of Chicago Title's Orinda office to close the transaction, and a pattern of incremental down payment deposits totaling over \$180,000. (3AC ¶ 69.) Plaintiff alleges that Chicago Title's conduct and failures to act constituted a negligent breach of duty in connection with its role as escrow agent in the transaction. (3AC ¶¶ 73-74.)

Chicago Title now moves to dismiss Plaintiff's action against it under Code of Civil Procedure section 583.210 for failure to serve Chicago Title with the summons and complaint within three years of filing the original complaint. Chicago Title separately demurs to the negligence cause of action, arguing it owed Plaintiff no duty of care as an escrow holder so Plaintiff's negligence claim fails on the merits. Plaintiff opposes the motion.

Legal Standard

A plaintiff must serve "a defendant within three years after the action is commenced against the defendant." (Code Civ. Proc. § 583.210, subd. (a).) "[A]n action is commenced at the time the complaint is filed." (*Ibid.*) Dismissal is mandatory where a plaintiff fails to serve a defendant within the statutory time limits. (Code Civ. Proc. § 583.250, subd. (b).) The three-year rule applies where the defendant seeking dismissal was served as a Doe defendant named in the original complaint, later amended to show his or her true name. (See *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 982; *Lesko v. Superior Court* (1982) 127 Cal.App.3d 476, 481–482.) In short, a plaintiff has three years from the date of filing the complaint to identify and serve a Doe defendant. (*Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061.)

Under Code of Civil Procedure section 474, "[a] plaintiff ignorant of the identity of a party responsible for damages may name that person in a fictitious capacity, a Doe defendant, and that time limit prescribed by the applicable statute of limitations is extended as to the unknown defendant. A plaintiff has three years under section 581a, subdivision (a) after the commencement of the action to discover the identity of the unknown defendant and effect service of the complaint. [Citation.] When

the complaint is amended to substitute the true name of the defendant for the fictional name, the defendant is regarded as a party from the commencement of the suit." (*Balon v. Drost* (1993) 20 Cal.App.4th 483, 487; see Code Civ. Proc. § 583.210 [successor to former § 581a].)

Discussion

Plaintiff filed the Complaint on December 20, 2021, but did not substitute Chicago Title Company in until November 26, 2025 and did not serve it until December 18, 2025. The Doe amendment therefore appears to be untimely under Civil Procedure section 583.210.

Plaintiff argues that the three-year service rule should not apply because she was unaware of the facts giving rise to Chicago Title's liability until more than three years after the original complaint was filed. Plaintiff cites cases in which courts upheld the right of plaintiffs to pursue claims where the basis for liability of defendants was not discovered until after the occurrence of the facts giving rise to the claim against those defendants.

The Court does not find Plaintiff's argument persuasive. The discovery rule applies to the accrual of a cause of action for statute of limitations purposes, not to the mandatory service requirements of Code of Civil Procedure section 583.210. Code of Civil Procedure section 583.250(b) provides that "[t]he requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." The statutory exceptions to the three-year service requirement are set forth in Code of Civil Procedure section 583.240 and include periods when the defendant was not amenable to the process of the court, prosecution of the action was stayed, the validity of service was being litigated by the parties, or service was impossible, impracticable, or futile due to causes beyond the plaintiff's control. (Code Civ. Proc. § 583.240, subd (d).) Plaintiff's failure to discover the facts giving rise to Chicago Title's liability does not fall within any of these statutory exceptions. Indeed, Code of Civil Procedure section 583.240(d) specifically states that "[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision." (*Id.*; See *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 982 ["Cabandong explains that she did not know of Higgins's identity or involvement until after discovery . . . and that once she learned of his involvement, she promptly took affirmative action However, Cabandong's explanation is irrelevant, since for purposes of computing the three years in which the plaintiff must serve the defendant, '[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control . . . ' (§ 583.240, subd. (d))."]; *Republic Corp. v. Superior Court* (1984) 160 Cal.App.3d 1253, 1256 [under the predecessor to § 583.240(d), plaintiff's failure to discover true identity or facts showing liability of unserved Doe defendant insufficient excuse for delay in service of summons on real defendant].)

As Plaintiff failed to serve Chicago Title within three years of filing this action, and because Plaintiff failed to demonstrate a valid exception to the mandatory provisions of Code of Civil Procedure sections 583.210, subdivision (a) and 583.250, the motion to dismiss is granted. Plaintiff's twelfth cause of action for negligence against Chicago Title is dismissed without prejudice. (Code Civ. Proc. § 581(b)(4); *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 214-215.) Plaintiff is free to file a new action against Chicago Title. The Court expresses no opinion as to whether such action would be timely under the applicable statute of limitations.